

21STCV38092 21STCV38092

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-06-23

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Case Number: 21STCV38092 Hearing Date: June 23, 2026 Dept: 735

Doe v. Empire View Homes, LLC, et al.

Plaintiff's Motion to Tax Costs

BACKGROUND

This is a landlord tenant action. On July 5,

2022, Plaintiff filed the third amended complaint against Defendants Empire

View Homes, LLC, Crei Manager, LLC and Steven Raymond Short, alleging causes of

action for breach of contract, breach of the implied warranties of habitability

and quiet enjoyment, sexual harassment and violations of Unruh and the UCL.

On February 4, 2026, following trial, the

jury found in favor of Defendants.

DISCUSSION

Plaintiff moves to tax Defendants' April 29,

2026 memorandum of costs on the ground that it is untimely. California

Rules of Court, rule 3.1700(a)(1) provides, "A prevailing party who claims

costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first."

The

following is a timeline of events:

a. 2/4/2026 — Jury returns special

verdict for defendants.

b. 2/6/2026 — Defendants electronically

serve their [Proposed] Judgment on Special Verdict – However, Defendants FAIL

to include the July 17, 2023 order granting their motion for summary

adjudication almost 3 years before the trial. (See Ackerman Decl., Exhibit D)

c. 2/23/2026 — The Court signs and

files the Judgment on Special Verdict.

d. 3/2/2026 — The clerk files and

electronically serves "Notice of Entry of Judgment / Dismissal /

Order" on form LACIV 123, with the "Judgment" box checked,

stating judgment was "entered on 03/02/2026." The Clerk's Certificate

of Service by Electronic Service confirms electronic service on all counsel

including Whitney Ackerman.

e. 3/19/2026 — Defendants

electronically serve a second "[Proposed] Judgment on Entire Case" (a more detailed judgment that adds reference to the Court's July 2023 summary adjudication of causes of action 1 through 6 and 8.

f. 4/17/2026 — The Court signs and

files a second judgment "Judgment on Entire Case" which fully disposed of all causes of action.

g. 4/22/2026 — Defendants file Proof of

Service of the Judgment on Entire Case.

h. 4/29/2026 — Defendants serve their

Memorandum of Costs.

Plaintiff

asserts that the time to file a memorandum of costs began running on March 2, 2026, the date the Court electronically served notice of the February 23, 2026 (first, incomplete) judgment. Fifteen days plus two days for electronic service from March 2, 2026, would be March 19, 2026. Defendants filed their memorandum of costs on April 29, 2026.

In

opposition, Defendants assert that the time to file the memorandum of costs

began running on April 17, 2026, the date the Court entered the judgment titled

“Judgment on the Entire Case.” Defendants argue that this judgment represents

the final disposition of the entire case because it included not only the jury

verdict but also the judgment on the prior motion for summary adjudication.

The

Court will allow Defendants to recover the costs claimed in the memorandum of

costs. The timing requirement of CRC Rule 3.1700(a)(1) is mandatory but not

jurisdictional, permitting the Court to exercise equitable discretion to excuse

the delay. (See e.g. Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard

Co. (1990) 223 Cal.App.3d 924, 929.) Defendants correctly believed the

April 17, 2026 judgment represents the final disposition of the case, for

indeed a proper judgment disposes of all claims between the parties; a “judgment”

that does not fully dispose of all claims between the parties is not a final

judgment. Defendants filed their memorandum 12 days after this final complete judgment

was entered, showing diligence.

CONCLUSION

The Court denies Plaintiff's motion to tax

costs.

Plaintiff to give notice.